

1.

CASE #	CASE NAME	HEARING NAME
CVRI2501757	ADAME vs WALMART INC.	MOTION FOR ORDER AUTHORIZING CORONER TO RELEASE PHOTOS OF DECEDENT

Tentative Ruling:

The unopposed motion is granted.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2502988	CREDITORS ADJUSTMENT BUREAU, INC., vs GARNET STONE ROOFING SERVICES, INC.	MOTION TO QUASH SERVICE OF SUMMONS ON COMPLAINT

Tentative Ruling:

The motion is granted to set aside the default and default judgment for reason Defendant Zarate has demonstrated that she was not properly served with summons and the original Complaint because Plaintiff failed to comply with Code of Civil Procedure section 412.30. "The court may ... on motion of either party after notice to the other party set aside any void judgment or order." (Code Civ. Proc., § 473(d).) "[A] default judgment [or default] entered against a defendant who was not served with a summons in the manner prescribed by statute is void." (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1444.) The proof of service is stricken. A case management conference is scheduled for October 13, 2026 at 8:30 am in Dept. 3

3.

CASE #	CASE NAME	HEARING NAME
CVRI2503201	MENENDEZ vs VICTORIA CLUB	MOTION TO SET ASIDE DISMISSAL

Tentative Ruling:

This matter was filed on 6/4/2025. The complaint was to be served within 60 days. The Court issued an OSC re: proof of service on 1/2/26 set for 2/4/26. The Plaintiff filed a declaration pursuant to Local Rule 3.116 on 1/28/26 advising that 60 days was needed to complete service. The Court eventually continued the CMC and OSC to 4/9/2026. No further declaration was filed. The Court dismissed this matter on 4/8/2026 with notice being given to the Plaintiff. This motion was filed over 3 months later on 7/16/2026. The Defendant has specially appeared to oppose this request.

The Plaintiff seeks to set aside the dismissal based upon attorney neglect. However, there is a requirement that the neglect is excusable. In this case, Plaintiff argues that

this is simply a calendar error that should be excused, but that is not the case. This case was over 10 months old at the time it was dismissed and there was no service of the complaint. The simple mis calendaring of the hearing date of the OSC did not prevent the Plaintiff from timely serving the complaint, that was the conduct of Counsel. There is no excuse in this matter for the failure to serve the complaint and as such, the motion is denied.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2302700	ASL BUILDERS, INC. vs HOOVER	MOTION TO COMPEL TO COMPEL FURTHER RESPONSES TO FIRST SET OF FORM INTERROGATORIES

Tentative Ruling:

Factual/Procedural Context

First Amended Complaint (FAC) & Allegations. Plaintiff ASL Builders, Inc. (or “ASL”) alleges that Defendants, Randy and Chrystal Hoover, own real property in Riverside (the “Property”). Plaintiff alleges that in September 2021, it entered into a written construction contract with Defendants where Plaintiff would provide labor, work, equipment, materials, and services, on a private work of improvement on the Property for \$1,094,768.47. Plaintiff alleges it fully performed except for covenants and obligations that were excused or waived. Defendants have only paid \$994,268.97 leaving a balance due of \$100,499.50, which Plaintiff has demanded but Defendants refuse to pay. The operative FAC, filed on May 26, 2023, asserts six causes of action: (1) breach of contract; (2) work, labor and services/agreed price; (3) open book account; (4) account stated; (5) reasonable value/work, labor and services; and (6) foreclosure on mechanic’s lien.

On March 4, 2026, Cross-Complainants, the Hoovers, filed their Third Amended Cross-Complaint (TACC) alleging 15 causes of action: (1) breach of contract; (2) damages for breach of warranty and failure to preserve warranties on home system; (3) damages for negligent work and defective materials; (4) enforcement of statutory bond; (5) tortious breach of implied covenant of good faith and fair dealing; (6) negligence; (7) fraud; (8) violations of the California Consumers Legal Remedies Act, Civil Code § 1750 et seq; (9) Unfair Business Practices in Violation of Business & Professions Code § 17200 et seq; (10) Violations of California Business and Professions Code §§ 7160, 7161 for fraud and deceit; (11) Rescission of Purported Home Improvement Construction Contract and Restitution; (12) intentional misrepresentation; (13) unjust enrichment; (14) Civil Penalties under Penal Code section 496(c); and (15) declaratory relief.

There is no trial date set.

Motion. ASL and Larry Nelson Sanford II (“Cross-Defendants” or “Movants”) now move to compel further responses from the Hoovers to Cross-Defendants’ Form